

Tentative Rulings for August 14, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2102535	CITY OF LAKE ELSINORE vs MITCHELL	MOTION LEAVE TO FILE CROSS- COMPLAINT

Tentative Ruling:

Motion is Off Calendar.

The Defendant has filed an appeal. The Court of Appeal has issued a Palma notice directing that the proceedings be Stayed pending determination of the appeal on the merits.

Matter is set for a Status Conference on June 9, 2027, at 8:30am, D-4.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2303538	CALDERON vs CITY OF MENIFEE	MOTION FOR LEAVE TO AMEND REQUEST FOR ADMISSION, SET TWO RESPONSE TO REQUESTS FOR ADMISSION, SET TWO, NO. 50 (ERRONEOUSLY NUMBERED 51)

Tentative Ruling:

GRANT

The City has established an excusable mistake in its response to RFA2 No.50 and Plaintiff will not be unduly prejudiced by the amended response.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES NOS. 2, 4, 6, 7, 9, 11 AND 13;

Tentative Ruling:

GRANT as to Special Interrogatories nos. 2, 6, 9,11 and 13.

BMW's response to no. 2 is not responsive to the call of the question. For no. 6, if the question requires reference to another document, the document should be identified and its contents summarized. In no. 9, BMW's response is vague. Does BMW maintain there are no defects that are responsive, or does BMW maintain only there are no

defects that would “substantially impair its use, value, or safety.” The responses to nos. 9 and 13 are similarly unclear. Special Interrogatory 11 is a contention interrogatory and does not call for a legal conclusion.

DENY as to nos.3 and 4. These interrogatories are overbroad.

Further responses due within 20 days.

No sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT’S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS NOS. 1-15

Tentative Ruling:

GRANT as to RFP’s nos. 1-10. and 14-15.

BMW’s responses are unclear as to whether BMW is complying in whole or in part, or whether any documents are being withheld. BMW needs to make the scope of its production clear, i.e., is it only for the term of the lease? For no. 6, BMW does not justify its claimed privilege-BMW must provide a privilege log identifying communications that are being withheld.

DENY as to no. 13. This request is unintelligible. It is unclear what Plaintiff is requesting here.

Further responses due within 20 days.

No sanctions.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT’S FURTHER RESPONSES TO FORM INTERROGATORIES NOS. 15.1 AND 17.1

Tentative Ruling:

DENY the motion as to Form Interrogatories 15.1 and 17.1. The responses to these interrogatories are sufficient.

No sanctions.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2506588	LAMBERT vs BMW OF NORTH AMERICA, LLC	MOTION TO COMPEL DEFENDANT'S FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS NOS. 1, 2, 3, AND 4

Tentative Ruling:

GRANT the motion as to RFA's nos.1-4.

For no. 1, Defendant cannot simply object to an RFA because it seeks a legal conclusion. (See, *Burke v. Superior Court* (1969) 71 Cal.2d 276, "When a party is served with a request for admission concerning a legal question properly raised in the pleadings he cannot object simply by asserting that the request calls for a conclusion of law. He should make the admission if he is able to do so and does not in good faith intend to contest the issue at trial...Otherwise, he should set forth in detail the reasons why he cannot truthfully admit or deny the request.") In RFA no.2, BMW's response is not clear or reasonable. Stating that documents "reflect" something is not the same as BMW admitting the existence of a fact. For no. 3, Defendant again improperly objects based on legal conclusion. The request is asking for a *factual* admission as to the number of days the vehicle was repaired---not a legal conclusion. For RFA no. 4, relevance is not the standard for an objection to this request. Rather, the standard is; is the request reasonably calculated to lead to the discovery of admissible evidence. Whether warranty repairs were performed is reasonably calculated to lead to the discovery of admissible evidence.

Further responses due within 20 days.

No sanctions.